

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND SITUATED IN A PORTION OF THE NORTHEAST QUARTER OF THE NORTHWEST QUARTER OF SECTION 26, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, TO BE KNOWN AS THE DEL-VAN ANNEXATION (LOCATED AT 5311 DELL RANGE BLVD AT THE SOUTHWEST CORNER OF THE INTERSECTION OF GYSEL PLACE AND DELL RANGE BLVD).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That the owner at the time of submittal of a parcel of land to be known as the Del-Van Storage Park Annexation being situated in a portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned MU – Mixed Use – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. All of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. The City Clerk is hereby directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. This ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT & STAFF REPORT

Del-Van Storage Park Subdivision

Summation

Annexation

CASE NUMBER(s): UDC-14-00189

FILE CODE: DEVA-A

PREPARED BY: Jim Flesher

REQUIRED

DOCUMENTS: All required documents have been submitted and reviewed by staff.

- Complete Application
- Petition signed by property owner
- Annexation Map (revised map submitted May 16, 2014)
- Soils report
- Signed clearance from Board of Public Utilities

RECOMMENDATION: Staff recommends adoption of the ordinance.

ANNEXATION REPORT & STAFF REPORT

Del-Van Storage Park Annexation

Annexation

CASE NUMBER(s): UDC-14-00189

FILE CODE: DEVA-A

OWNER: Kent R. Embree, *et ux*
2375 Wind River Tr
Cheyenne, WY 82009

AGENT: Casey Palma
Steil Surveying Services, LLC
P. O. Box 2073
Cheyenne, WY 82003

307-634-7273

REQUEST: Annexation to the City of Cheyenne

LOCATION:

1. Legal Description: Portion of the Northeast Quarter of the Northwest Quarter of Section 26, Township 14 North, Range 66 West of the 6th P.M., Cheyenne, Wyoming
2. Location: South of and adjacent to Dell Range Blvd.
3. Address: 5311 Dell Range

SIZE: Total Area: 2 acres

CURRENT ZONING: MU Mixed Use (County)

PROPOSED ZONING: MUE Mixed-Use Employment Emphasis

EXISTING LAND USE: Commercial buildings and vacant land

PROPOSED LAND USE: Storage Park (units accessed from individual exterior doors)

SURROUNDING LAND USES:

DIRECTION	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Low-Density Residential across Dell Range	AR	County
South	Single-Family Residential	MR-1	City
East	Single-Family Residential	MR-1	City
West	Low-Density Residential, Townhomes, Church, School	LR, LR-2, MR-1, MR-2, P	County, City

SUMMARY:

The City has received a petition to annex this two-acre property that is completely surrounded by the City on all sides. It is one of three parcels proposed to be replatted as Del-Van Storage Park and zoned MUE Mixed Use Employment Emphasis.

Wyoming State Statutes require that prior to annexing territory to the City certain steps must be followed, including the governing body conducting a public hearing and finding that the territory is eligible for annexation. The statutes list six criteria that must be met for the territory to be eligible for annexation. The attached ordinance finds compliance with these six criteria and annexes the land into the City, allowing the annexation map to be recorded. Staff recommends adoption of the ordinance.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property contains a metal building built in 1968, according County Assessor records, with a gravel drive and parking lot. It abuts the rear property line of eight single-family lots on El Camino Drive in Valley Vista subdivision. There is a chain-link fence, and curb, gutter, and sidewalk on Dell Range.

COMPREHENSIVE PLAN:

The property is within the Urban Service Boundary. The Future Land Use Plan map in PlanCheyenne indicates Mixed-Use Residential for this property and the surrounding vacant land, which is appropriate for a variety of uses including various housing types, live/work units, as well as retail and offices.

ANNEXATION ELIGIBILITY DATA/ANALYSIS:

Before any territory is eligible for annexation, the governing body must find that the following criteria are met (W.S. § 15-1-402 (a)):

- 1) "An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town." **Findings:** Ensuring development connects to City sewer rather than utilizing septic systems promotes public health for area residents. Likewise, having development served by City police serves the public safety and welfare of area residents.
- 2) "The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town." **Findings:** The property abuts existing City limits on all sides. The site is located within the PlanCheyenne comprehensive plan area and planned for urban services expansion.
- 3) "The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed." **Findings:** The area sought to be annexed is planned for urban services expansion in numerous City planning documents including PlanCheyenne and the Board of Public Utilities master plan. The City's water and sewer system has capacity to serve this area and lines are in place in Dell Range. Development will be required to include extension of water and sewer lines, stormwater lines, and street improvements. Services customarily available to residents in Cheyenne will be available to the subject property.
- 4) "The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. § 15-1-407." **Findings:** The property is approximately 100% contiguous with existing City limits.
- 5) "If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. § 15-1-410." **Findings:** Franchises are in place to serve this property.
- 6) "The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. § 15-1-405(a)." **Findings:** The required information was sent May 8, 2014.

ANNEXATION REPORT DATA:

In compliance with W.S. § 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. § 15-3-202 (b) (ii).
- (ii) The total estimated cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. As mentioned previously, a water line exists in Dell Range Boulevard and a sewer line exists El Camino Drive in Dell Range as well. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner. Police and fire protection will be provided upon annexation.
- (iv) Fees for water, sewer, and sanitation services are variable based upon volume. Tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) Requirements for off-site improvements will be evaluated at the time of development.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Surveyor: Jack Studley

(Note these comments have been addressed with a revised map.)

1. Boundary data and legal descriptions appear in order.
2. All boundary corners must be monumented per record or per this survey.
3. Two City Ground Datum Control Points and coordinates, with ties, must be provided. And coordinates for two corners of one boundary course must be provided.

City-County Environmental Health: Jennifer Escobedo

Regulations: Laramie County Small Wastewater System Regulations. Staff Comments: The existing septic system shall be properly abandoned and inspected by this office. Contact Env. Health prior to removal of tank. If the well is abandoned, it must also be abandoned properly.

AGENCIES RESPONDING WITHOUT COMMENT: BOPU, Cheyenne Light, Fuel & Power, County Assessor, County Planning, Engineering - General, Engineering Tech/GIS, Fire, School District #1, MPO, Parks & Rec, Public Works.

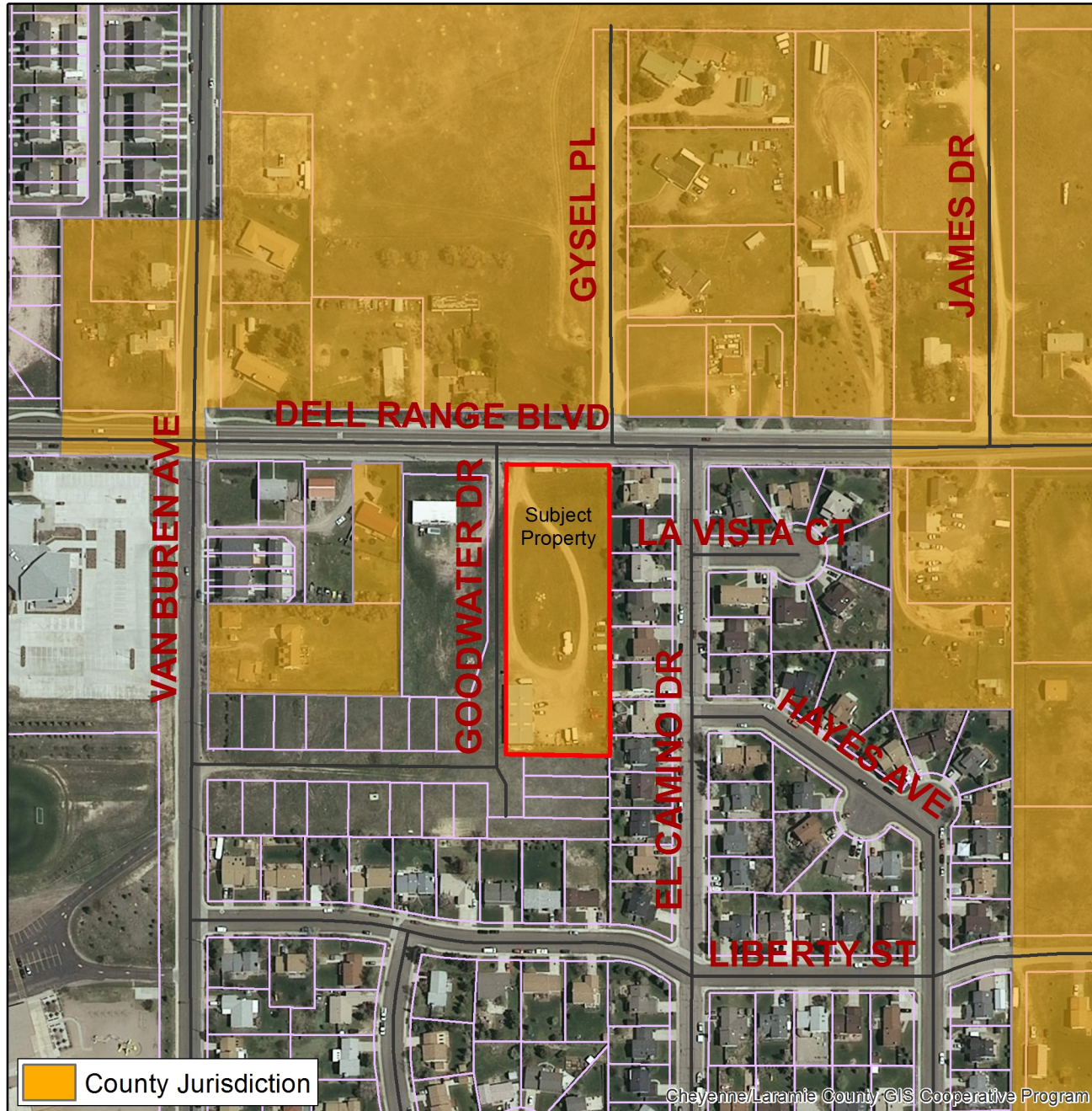
AGENCIES NOT RESPONDING: CenturyLink, City Attorney, City Engineer, County Attorney, County Clerk, County Sheriff, High West Energy, Laramie County Conservation District, Police.

OTHER COMMENTS RECEIVED: None.

Encl: Annexation Ordinance
Annexation Map

cc: Agent and Owner
File

Del-Van Storage Park Annexation

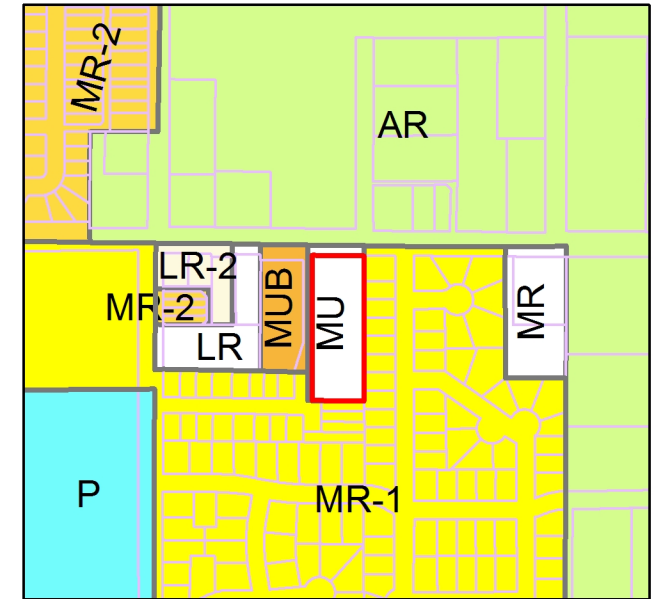


1 inch = 0.05 miles

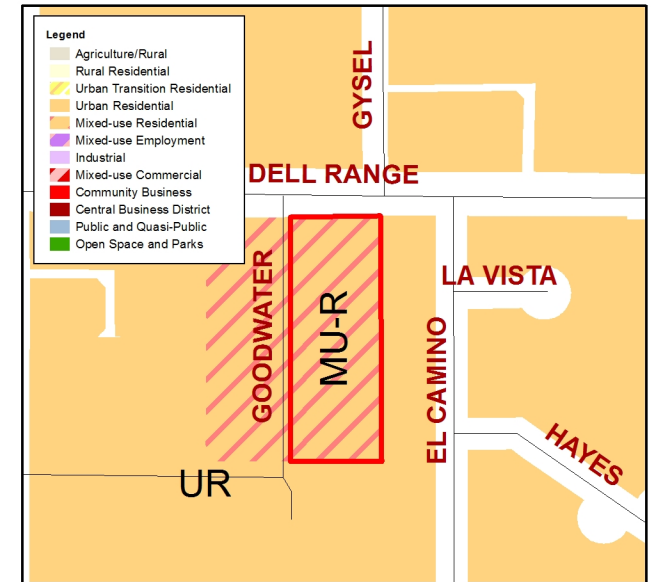
PROJECT NUMBER:
ANNEXATION: UDC-14-00189



THIS MAP IS MADE POSSIBLE THROUGH THE CHEYENNE AND LARAMIE COUNTY COOPERATIVE GIS (CLCCGIS) PROGRAM AND IS FOR DISPLAY PURPOSES ONLY. THE CLCCGIS INVOKES ITS SOVEREIGN AND GOVERNMENTAL IMMUNITY IN ALLOWING ACCESS TO OR USE OF THIS DATA, MAKES NO WARRANTIES AS TO THE VALIDITY, AND ASSUMES NO LIABILITY ASSOCIATED WITH THE USE OR MISUSE OF THIS INFORMATION.

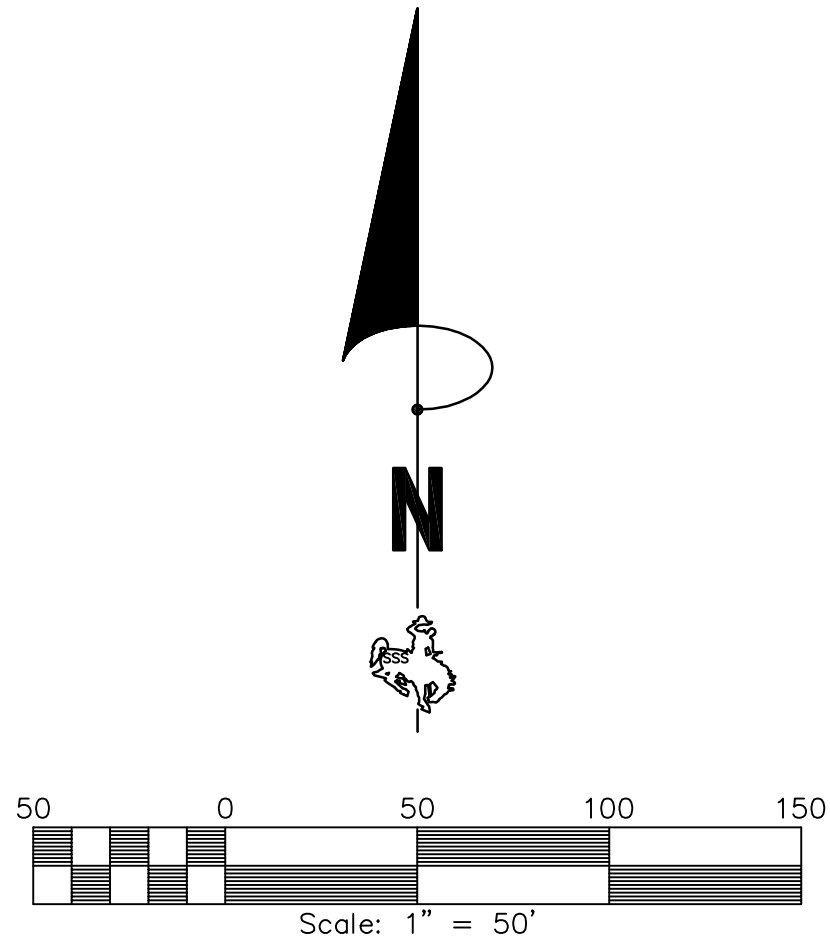
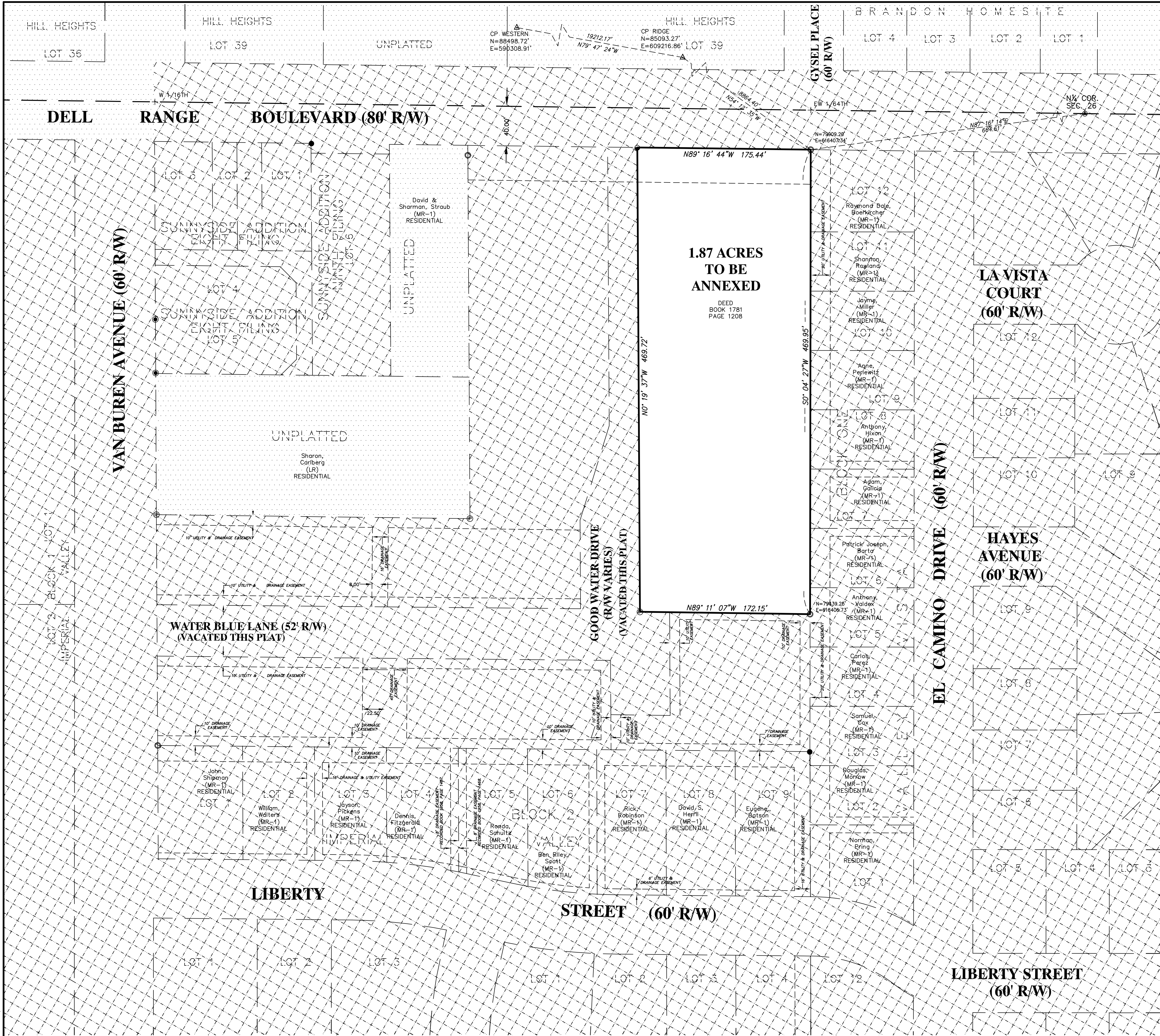


Current Zoning



PlanCheyenne Future Land Use





- LEGEND**
- FOUND 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 2500"
 - SET ¾" x 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
 - ▲ FOUND 3 ½" ALUMINUM CAP MARKED "PLS 2500"
 - FOUND 1½" ALUMINUM CAP ILLEGIBLE
 - ⊙ FOUND 1½" ALUMINUM CAP STAMPED "PLS 9843"
 - ⊙ FOUND ½" IRON PIPE
 - ▨ LANDS CURRENTLY INCORPORATED WITHIN THE CITY OF CHEYENNE CORPORATE LIMITS
 - ▨ OTHER LANDS CURRENTLY OUTSIDE OF THE CITY OF CHEYENNE CORPORATE LIMITS (COUNTY)
 - ▭ AREA TO BE ANNEXED

NOTES

- 1) BASIS OF AZIMUTH — CITY OF CHEYENNE DATUM REFERENCED FROM CITY CONTROL MONUMENTS "CP COLLEGE" & "CP EAST".
- 2) NO PORTION OF THE SUBJECT PROPERTY FALLS WITHIN FEMA SPECIAL 100-YEAR FLOOD HAZARD AREA AS SHOWN ON F.I.R.M. PANEL # 56021C1091F, DATED JANUARY 17, 2007.
- 3) WATER AND SEWER TO BE PROVIDED BY CITY OF CHEYENNE BOPU.
- 4) ALL UTILITIES TO BE PROVIDED IN ADJACENT RIGHT-OF-WAY.
- 5) NEAREST FIRE HYDRANT APPROXIMATELY 175' EAST AT THE CORNER OF LA VISTA CT.

APPROVALS

Approved by the Council of the City of Cheyenne, Wyoming this ____ day of _____, 2014.

Mayor

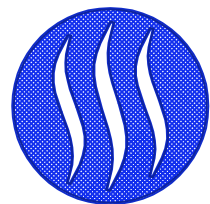
Attest:
City Clerk

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, Registered Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

**ANNEXATION
MAP
FOR
DEL-VAN
STORAGE
PARK**

SITUATED ON A PORTION OF
THE NORTH EAST QUARTER OF THE NORTH
WEST QUARTER OF SECTION 26
T.14N. R.66W. 6TH P.M.
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED May 14



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS

1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789